

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13

Honorable Eunice Lee, Presiding (covering for Daniel T. Nishigaya)

TBD, Courtroom Clerk

191 North First Street, San Jose, CA 95113

DATE: July 22, 2026 TIME: 10:00 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 13: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23PR194132	In the Matter of: Estate of Weiwei Hsieh	Petition for Order Award Costs, Reimbursement, and Return of Beneficiary Funds against Respondent H.W. Spencer Hsieh Scroll down to Line 1 for Tentative Ruling.
<u>LINE 2</u>	25PR201006	In the Matter of: Declaration of Trust of Robert G. Cosgrove and Marian V. Cosgrove, dated August 17, 1987	Motion to Approve Settlement Agreement Scroll down to Line 2 for Tentative Ruling.

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9:00 A.M.

Calendar Line # 1

Case Name In the Matter of: Estate of Weiwei Hsieh

Case No. 23PRI94132

Petition for Order Award Costs, Reimbursement, and Return of Beneficiary Funds against Respondent H.W. Spencer Hsieh

I. BACKGROUND

Petitioner Andrey Jivsov (“Petitioner”) initiated this case by filing a petition to probate a purported will of WeiWei Hsieh (“Decedent”) signed in 2020. The petition was not opposed and on April 6, 2023, the court admitted Petitioner’s proffered will to probate and issued letters testamentary. The 2020 will leaves the entirety of the estate to Fiona Jivsov (“Fiona”), Petitioner’s and Decedent’s daughter.

On August 7, 2023, H.W. Spencer Hsieh (“Respondent”), Decedent’s former husband, filed a petition for revocation of probate of will, to suspend and remove Petitioner as executor of Decedent’s estate and trustee of a trust of Decedent’s executed in 2020, to determine interference with expected inheritance, and alleging claims for return of estate property, wrongful taking of estate property, conversion, elder abuse, fraud, misappropriation of estate property, breach of fiduciary duty, and constructive trust. Respondent asserts that Decedent executed a valid trust in 2022 a few days before she committed suicide and, therefore the 2020 will is not the operative will (“Respondent’s Petition”). The purported beneficiaries of the 2022 trust are Fiona Jivsov and Respondent. Petitioner has opposed Respondent’s Petition, contending, inter alia, that the trust proffered by Respondent is invalid on multiple grounds.

The court granted Petitioner’s unopposed request to bifurcate trial on Respondent’s Petition as follows: (1) phase one: Respondent’s standing, jurisdictional and procedural issues, and the preclusive effect of a Nevada court order invalidating the trust Decedent executed just days before her death and (2) phase two: the merits of Respondent’s Petition. After trial, the Honorable Duong issued an order finding in Petitioner’s favor as to phase one.

Thereafter, on February 25, 2026, Petitioner filed a memorandum of costs. On April 13, 2026, Petitioner filed a petition entitled “Petition for Order Awarding Costs, Reimbursement, and Return of Beneficiary Funds Against Respondent H.W. Spencer Hsieh” (“Cost Petition”). On July 14, 2026, Respondent filed an opposition to the Cost Petition.

Currently before the court is Petitioner’s Cost Petition.

II. PROCEDURAL VIOLATION

On June 17, 2026, the Honorable Saban ordered that the Cost Petition be heard on the law and motion calendar. Judge Saban also ordered that Respondent file his opposition by end of day on June 17, 2026. The Court notes procedural violation by Respondent, who filed opposition on July 14, 2026.¹ In violation of the court order, the Respondent’s paper is over five weeks late. Additionally, per Code of Civil Procedure section 1005(b) opposition papers were to be filed by July 9, 2026.

California Rules of Court, rule 3.1300, subdivision (d) states, “No paper may be rejected for filing on the ground

¹ The opposition is improvidently titled, “HW Spencer Hsieh’s Opposition to Andrey Jivsov’s Notice of Motion and Motion to Tax Costs[.]” The court notes that the party prevailing at trial generally files a memorandum of costs and the opposing party files a motion to strike or tax costs. (See Cal. Rules of Court, rule 3.1700(a)&(b)).

that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will continue the hearing for consideration of the motion and opposition on its merits. However, the Respondent is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court’s refusal to consider untimely filed papers.

III. CONCLUSION

The hearing on the Cost Petition is hereby CONTINUED. The parties and/or their counsel are ordered to appear, in person or remotely, to select a new hearing date. The Court will prepare the formal Order.

Calendar Line # 2
Case Name Declaration of Trust of Robert G. Cosgrove and Marian V. Cosgrove, dated August 17, 1987
Case No. 25PR201006
Motion to Approve Settlement Agreement
I. <u>BACKGROUND</u> Petitioner Sandra Jean Baker (“Petitioner”) initiated this action by filing a petition concerning internal affairs of trusts and for transfer of real property. Petitioner asserts that she is the daughter of Robert Cosgrove and stepdaughter of Marian Cosgrove (collectively, “Settlors”), settlors of the Trust of Robert C. Cosgrove and Marian V. Cosgrove. Petitioner maintains that Settlors entered into an agreement with her in 1981 whereby she would be able to lease the real property located at 151 La Canada Court, Los Gatos, California (“Property”) for a term of 10 years for \$500 per month and then would be vested with a lease 99 years at a specified monthly rent. After 30 years, Petitioner would own the Property outright. In 1987, Settlors executed the Trust of Robert C. Cosgrove and Marian V. Cosgrove, the terms of which reflected the agreement with Petitioner. In 1988, Settlors executed wills identifying the Property as community property and each Settlor left one half of the Property to Petitioner. In 2022, Marian Cosgrove executed two versions of the Marian V. Cosgrove Revocable Trust UDT. The Property is purportedly an asset of the 2022 trusts. Robert Cosgrove is now deceased and Marian Cosgrove is incapacitated. Petitioner seeks, inter alia, an order that the trustee of the Marian V. Cosgrove Revocable Trust UDT, August 11, 2022 transfer the Property to her and that the 2022 trusts are invalid. Eve Monroe (“Respondent”), daughter of Marian Cosgrove, objected to the petition in her capacity as an individual beneficiary, as trustee of the Marian V. Cosgrove Revocable Trust UDT, August 11, 2022, and as attorney-in-fact for Marian Cosgrove. Respondent also filed a supplemental objection, providing a copy of the power of attorney signed by Marian Cosgrove. Other interested parties were served but no other interested party filed an objection or appeared in the instant litigation. The parties participated in mediation resulting in a settlement signed by Petitioner and Respondent, as an individual, as trustee, and as attorney-in-fact for Marian Cosgrove. Currently before the Court is Petitioner’s motion to approve a settlement agreement she entered into with Respondent. The motion is unopposed. // // //

II. DISCUSSION

A. LEGAL BACKGROUND

“The trustee has the power to do any of the following: . . . Settle a claim by or against the trust by compromise, arbitration, or otherwise.” (Prob. Code, § 16242, subd. (b)). The probate court has authority to pass on the actions of the trustee pursuant to Probate Code section 17200. The court has discretion to approve a settlement agreement. (*Estate of Green* (1956) 145 Cal.App.2d 25, 28; *Breslin v. Breslin* (2021) 62 Cal.App.5th 801, 806 [probate court’s approval of settlement agreement is reviewed for abuse of discretion].) Interested parties who receive notice but do not participate in the litigation or mediation proceedings are bound by the settlement agreement. (*Breslin v. Breslin* (2021) 62 Cal.App.5th 801, 806).

B. THE SETTLEMENT AGREEMENT IS FAIR AND REASONABLE

Petitioner and Respondent participated in a full-day mediation session with the Honorable Judge Jacobs-May of JAMS, resulting in the proposed settlement agreement. The settlement agreement provides that Petitioner will receive the Property in exchange for a payment of \$312,345.00 to Respondent as trustee of the Marian V. Cosgrove Revocable Trust UDT, August 11, 2022. (Declaration of Attorney Zell in Support of Motion to Approve Settlement by Trustee, Exh. A [settlement agreement], ¶ 4). The parties agree that current value of the Property of \$2,082,300.00. From the \$312,345.00 payment, Respondent will pay to the beneficiaries of Marian V. Cosgrove Revocable Trust UDT, August 11, 2022, Gwen Lumbré, Sue Cosgrove, and the estate of Robert Glen Cosgrove \$14,875.00 each and a second payment of \$52,057.50 each. (*Id.* at ¶ 5). The remainder of \$111,547.50 will be used for the care of Marian Cosgrove. (*Ibid.*). Moreover, the parties to the agreement release all claims arising out of the petition and objection filed in this case, whether known or unknown. (*Id.* at ¶¶ F, 7, 9).

The settlement represents a good outcome for the beneficiaries because it is possible that the outcome of the litigation may have been that Petitioner would receive the Property outright without payments to the beneficiaries. Pursuant to the settlement, the beneficiaries receive the payments discussed above.

III. CONCLUSION

The motion is GRANTED. The Court will prepare the Order.